

**P L D 2018 Lahore 504**

**Before Jawad Hassan, J**

**PAKISTAN MOBILE COMMUNICATION LIMITED---Petitioner**

**Versus**

**PROVINCE OF THE PUNJAB and 7 others---Respondents**

Writ Petition No.104383 of 2017, heard on 8th February, 2018.

**Punjab Security of Vulnerable Establishment Act (XIV of 2015)---**

---Ss. 2(i), 7, 9 & 12---Vulnerable establishment---Security---Petitioner was a cellular phone service provider and had set up several Base Transceiver Stations (BTS) towers--- Petitioner was aggrieved of notices issued by authorities to comply with security arrangements of BTS towers--  
-Validity---Petitioner did not fall under the definition of 'vulnerable establishment' because BTS towers were not notified under Punjab Security of Vulnerable Establishment Act, 2015, as vulnerable establishments---High Court directed the authorities not to harass and take coercive measures against petitioner in violation of applicable law and in absence of notification declaring the petitioner as a vulnerable establishment---Constitutional petition was allowed accordingly.

Ahmad Farooq for Petitioner.

Ashfaq Ahmad Kharal, A.A.G. with Irshad Ahmad, Section Officer (IS-II), Home Department on behalf of Respondent No.1.

Muhammad Boota, S.I. along with Ijaz, ASI.

Ms. Saadia Malik, Assistant Attorney General.

Date of hearing: 8th February, 2018

## **JUDGMENT**

**JAWAD HASSAN, J.**---Through this petition, the Petitioner has challenged the notice dated 31.10.2017 issued by the Respondent No. 4, along with undated and unnumbered notice of the Respondent No. 6 (the Impugned Notices").

2. The learned counsel for the Petitioner submits that the Petitioner is a company incorporated under the Companies Ordinance, 1984 and is engaged in the business of providing telecommunication and cellular services under the name and style of 'Mobilink'. In this respect, the Petitioner has set-up several Base Transceiver Station (BTS) towers throughout Pakistan after obtaining permissions and requisite NOCs from the concerned authorities. The grievance of the Petitioner is that the Respondents Nos. 4 and 6 have issued Impugned Notices directing the Petitioner to adhere to the SOPs regarding BTS towers and to comply with requirements

mentioned in the Impugned Notices, which are not practically possible due to financial and other economic issues. He submits that the Respondents have no jurisdiction under the Punjab Security of Vulnerable Establishment Act, 2015 (the "Act") to issue such notification because the Petitioner does not fall under definition of "vulnerable establishment" provided in Section 2(i) of the Act and also the Impugned Notices were issued without any Security Advisory Committee which ought to be notified under Section 3 of the Act. He further states that this Court in a similar matter bearing Writ Petition No.8691 of 2015, titled Pakistan Mobile Communications Ltd. v. Province of Punjab and others, has already entertained the petition in which notices have been issued and interim relief has also been granted.

3. On the other hand, the Respondents have submitted their reports and parawise comments as per directions of this Court. The Respondent No.4 (DSP/SDPO, Pasroor Circle, District Sialkot) has stated that he has not caused any sort of harassment or threat to the Petitioner; the security arrangements of BTS tower of the Petitioner are not in accordance with SOPs issued by higher authorities; the notices were issued to the mobile companies to make better arrangements for the security of mobile towers and vulnerable establishments to avoid robbery/dacoity and any event of terrorism; the Respondent No. 4 has not sealed the premises and has not committed any unlawful act. Similarly, the Respondent No. 1 has contended that as per report of the Respondent No. 8 (Inspector General of Police Punjab), constant complaints regarding theft of batteries of BTS towers were being received in circle of Respondent No.6 (DSP/SDPO, Peoples Colony Circle, District Gujranwala); Respondent No. 6 has reported that when it was noticed that BTS towers were not included in the list of 'vulnerable establishments', the impugned letter of Respondent No. 6 was not formally circulated, which is evident from the fact that the impugned letter does not have name and address of the Petitioner, and does not bears any dispatch number. Respondent No. 6 has further reported that no coercive measures were taken against the Petitioner, nor shall be taken against the Petitioner in future, and employees of the Petitioner shall be treated in accordance with the applicable law. The Respondent No.7 (SI/SHO, Police Station Peoples Colony, District Gujranwala) and 8 have supported the contentions of the Respondents Nos. 1 and 4.

4. Arguments heard and record perused.

5. It is reflected from perusal of record that in the impugned letter dated 31.10.2017, the Respondent No. 4 has asked the Petitioner to implement the already issued SOPs under Section 6 of the Act, otherwise they would be dealt under Section 11 of the Act. Similarly, an un-numbered and un-dated notice of the Respondent No. 6 has also stated that some sites have been declared vulnerable, which require completion of the listed security work within five (5) days.

6. At the outset, the Act has been enacted to make arrangements for the security of 'vulnerable establishments' in order to prevent acts of terrorism and other crimes, to obtain evidence by use of modern devices for investigation and prosecution of offences, and to deal with ancillary matters. Section 2(h) of the Act defines 'security arrangements':

"(h) "security arrangements" mean effective physical and technical security arrangements including installation and proper functioning of closed circuit television cameras, bio-metric system, walkthrough gates, security alarm and other modern gadgetries; "

Section 2(i) of the Act defines 'vulnerable establishments':

"(i) "vulnerable establishment" means a place of worship or any other religious place, sensitive office of the Government, Federal Government, non-governmental organization or foreign project, hospital, bank, money changer, financial institution, office of firm or company, industrial unit, educational institution, public park, private clinic, wedding hall, petrol or CNG station, jewellery shop, hotel, amusement or entertainment center, public transport terminal, special bazaar, commercial street, shop or shopping arcade notified under the Act."

7. Section 3 of the Act constitutes a Security Advisory Committee (the "Committee") in each sub-division consisting of the Sub-Divisional Police Officer as the Chairperson and other members, which is required to meet at least once in a month. Section 4 provides functions of the Committee, inter alia, to identify and recommend the establishments for notification as vulnerable establishments; inspect a vulnerable establishment on quarterly basis; issue advice, in writing, to the manager of a vulnerable establishment for such security arrangements as may be necessary on the basis of threat perception, resources at the disposal of the establishment and other related factors; and send report to the District Coordination Officer and Head of District Police in case of non-compliance of any advice.

8. Section 5 of the Act requires the Committee to identify and recommend to the District Coordination Officer an establishment for notification as a vulnerable establishment, and the District Coordination Officer has powers to declare and exclude any establishment as a vulnerable establishment. Section 6 requires the Committee to issue advice for security arrangement to the manager of such an establishment, who is required to make necessary security arrangements as per advice of the Committee within such reasonable time as the Committee determines. Section 7 of the Act requires the manager of a vulnerable establishment to make appropriate and sufficient security arrangements for the protection of the vulnerable establishment and to comply with the advice of the Committee within the time specified in the advice.

9. Moreover, section 8 of the Act requires a local government or any other local authority to ensure clearance of roads, streets from debris or construction material, managing of filth depots on daily basis, covering manholes and removing broken water supply pipes so that no explosive materials may be concealed at any such place. Section 9 of the Act gives powers to the Police Officer incharge of the Police Station to inspect any vulnerable establishment and submit his report to the Chairperson of the Committee under intimation to the District Coordination Officer and Head of District Police. Section 10 of the Act authorizes the Committee to issue a written warning to the manager of the vulnerable establishment specifying specific violation of its advice. However, Section 11 of the Act empowers the Committee to completely or partially seal the vulnerable establishment or to suspend its operations till the time the advice of the Committee is fully implemented and satisfactory security arrangements are made or the manager undertakes in writing to do so within such further time as the Committee may allow. Further, the Police Officer incharge of the Police Station is required to implement the direction of the Committee and may use such force as may be necessary.

10. Section 13 of the Act bounds the manager of a vulnerable establishment to provide such

evidence of offence as is obtained through security arrangements of the vulnerable establishment to the police or any other investigation agency. Section 14 of the Act makes any person liable to punishment of imprisonment extending to six (6) months and a fine from fifty thousand rupees (Rs.50,000) to one hundred thousand rupees (Rs.100,000) in case of any contravention of the provisions of the Act. Under Section 15 of the Act, any offence under this Act is cognizable and non-bailable, and a Magistrate of the first class is authorized to conduct the trial of an offence under the Act in accordance with the provisions of Chapter XXII of the Code of Criminal Procedure, 1898 relating to the summary trials.

11. Section 12 of the Act provides a remedy of appeal to the manager of a vulnerable establishment, who may file it against any advice, warning or direction of sealing or suspension of operations to the District Intelligence Committee within three (3) days. The District Intelligence Committee is required to provide opportunity of personal hearing to such appellant and the representative of the Committee, and may pass such order as is deemed necessary, which shall be final, within seven (7) days. Further, Section 17 of the Act restricts any court to entertain any suit or application against any proceedings taken, direction or order made under this Act.

12. Having described the structure of the Act, it is necessary now to relate it to the facts of the instant Writ Petition. In response to the submissions and allegations of the Petitioner, the Respondents have admitted that the Petitioner does not fall under the definition of the 'vulnerable establishment' because BTS towers have not been notified under the Act as vulnerable establishments. To support this contention of the Respondents, they have also made clear that the un-numbered and undated impugned letter of the Respondent No.6 does not address the Petitioner and does not have any dispatch number. Further, the Respondents have also conceded that no coercive measures were taken against the Petitioner, and shall also not be taken in violation of the applicable law against the Petitioner.

13. Since the Respondents have themselves admitted the non-issuance of the un-numbered and undated impugned letter of the Respondent No. 6 to the Petitioner and has also made clear that no coercive measures shall be taken against the Petitioner, there is no need for issuing any order against the Respondents. The Respondents shall, however, not harass and take coercive measures against the Petitioner in violation of the applicable law and in absence of the notification declaring the Petitioner as a vulnerable establishment.

14. In view of the discussion above, the instant Writ Petition is disposed of.

MH/P-6/L

Order accordingly.